Notification Waiver Determination

Abu Dhabi Investment Authority – Barings Darling Square Holding Trust

Acquisition	The Trust Company (Australia) Limited as trustee for Pearl Spring ZB 2016 Trust (**Pearl**) applied for a notification waiver in respect of its proposed acquisition of a minority interest in the Barings Darling Square Holding Trust (the **Darling Square Trust**), as described in the transaction documents provided as part of the application (the **Acquisition**). Pearl will become party to a Unitholders' Agreement in respect of the Darling Square Trust.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	29 July 2026

Parties to the Acquisition	The acquirer, Pearl, is an investment vehicle of the Abu Dhabi Investment Authority (**ADIA**). Pearl invests in commercial real estate assets and investment vehicles in Australia, as part of the ADIA's broader investment group that invests in infrastructure, logistics and hotels. The target, the Darling Square Trust, holds, via a subsidiary trust, a leasehold interest in property located at Darling Square, 35 Tumbalong Boulevard, Haymarket NSW 2000. The property is the site of a 13-level office building.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Pearl (and its connected entities) and the Darling Square Trust in the supply and development of commercial office spaces in Sydney CBD and the surrounding area b. there are alternative suppliers and developers of commercial office spaces in Sydney CBD and the surrounding area.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act